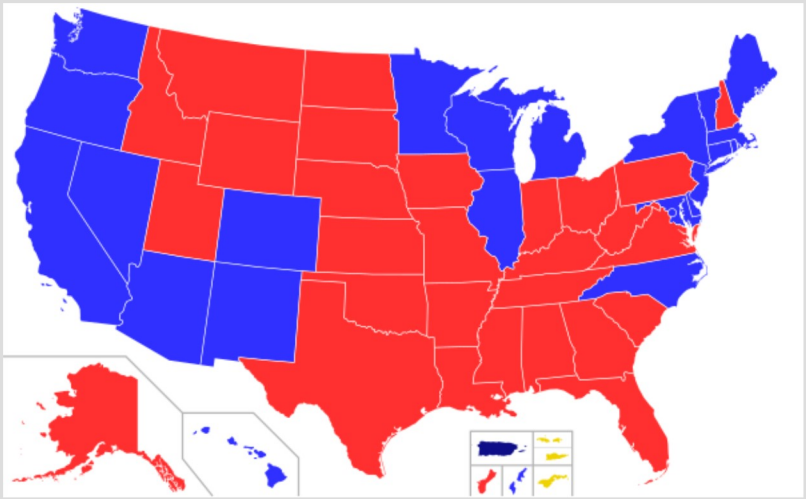
WIKIPEDIA
The Free Encyclopedia

State attorney general

The **state attorney general** in each of the 50 U.S. states, of the federal district, or of any of the territories is the chief legal advisor to the state government and the state's chief law enforcement officer. In some states, the attorney general serves as the head of a state department of justice, with responsibilities similar to those of the United States Department of Justice.



Party affiliation of current United States attorneys general:
- Democratic (22 states, 1 territory[a], and 1 district)
- Republican (28 states, 1 territory[b])
- Non-partisan (2 territories)
- New Progressive (1 territory)

History

The concept of a state attorney general originates with the attorneys general of the Thirteen Colonies, who in turn were modeled after the Attorney General for England and Wales.[1] The first recorded appointment of an attorney general in the colonies was Virginia's appointment of Richard Lee I in 1643.[1] The office may have existed for some time in a colony before it was recorded in official records. For example, Maryland was settled in 1634 but an attorney general is not mentioned in its records until 1658.[1] In the colonial era, the office was poorly defined, and the pay was terrible and not commensurate to the scope and amount of work.[1] The primitive state of statutory law in the colonies meant that practicing English law required a strong grasp of the common law to fill in the gaps.[1] This was quite a problem when most of the people who actually understood the common law were still in England.[1]

Of the 50 states in the Union, 34 states created or continued the office in their state constitution, eight others created the office in statutory law at the time of statehood, and eight others did not have an attorney general when they became states.[2] A few states were slow to establish the office. Vermont's 1793 constitution mentions an attorney general but the legislature did not actually pass legislation to implement that constitutional provision until 1904.[3] Some states went through the odd exercise of creating the office, abolishing it, then reestablishing it. Specifically, Illinois (1848-1867), Indiana (1826-1855), Maryland (1851-1864), and

Massachusetts (1843-1849) all went through periods of disestablishing and reestablishing their state attorney general offices.[3] All 50 states, the District of Columbia, and all the inhabited federal territories now have an attorney general or chief legal officer.[2]

Selection

The most prevalent method of selecting a state's attorney general is by popular election. 43 states have an elected attorney general.[4] Elected attorneys general serve a four-year term, except in Vermont, where the term is two years.[5]

Seven states do not popularly elect an attorney general. In Alaska, Hawaii, New Hampshire, New Jersey, and Wyoming, the attorney general is appointed by the governor.[4] The attorney general in Tennessee is appointed by the Tennessee Supreme Court for an eight-year term.[4][5] In Maine, the attorney general is elected by the state Legislature for a two-year term.[4][5]

The District of Columbia and two U.S. territories, Guam and the Northern Mariana Islands, elect their attorneys general for a four-year term. 2014 marked the first year that the District of Columbia and the Northern Mariana Islands held an election for the office. In American Samoa, Puerto Rico, and the U.S. Virgin Islands, the attorney general is appointed by the governor.[6] In Puerto Rico, the attorney general is officially called the secretary of justice, but is commonly known as the Puerto Rico attorney general.[7]

Many states have passed term limits limiting the selection to 2 consecutive terms (9 states); 2 terms maximum (4 states), but 33 states have no term limits.[8]

Duties

The specific duties of a state attorney general vary significantly from state to state, but there are several duties common to most offices:

- Control of litigation involving the state (representing the state at the trial and appellate levels in various types of litigation);[9]
- Chief legal officer of the state (chief legal advisor to the governor and various state government agencies);[9]
- Drafting advisory opinions on state law;[10]
- Public advocacy (i.e., child support enforcement, consumer protection, state-level antitrust enforcement, utilities regulation, and crime victim advocacy);[10]
- Criminal law enforcement (most attorneys general have relatively limited authority to initiate criminal prosecutions, but most are responsible for responding to defendants' appeals from prosecutions initiated in trial courts by locally-elected district attorneys);

[10]

- Law reform (i.e., serving on a law reform commission);[10]
- Exercising investigative authority (i.e., leading investigations of government misconduct, malfeasance, individual criminal activity, or issues of substantial public interest);[11] and
- Setting public policy (invoking the authority of the statewide office as a platform to "speak with authority and influence on major questions" involving law and justice).[11]

Defense of the state in federal lawsuits

State attorneys general enforce both state and federal laws. Because they are sworn to uphold the United States' constitution and laws as well as the state's, they may decline to defend a state law in a federal preemption case.[12]

Organization

Two of the most common management models for organizing a state attorney general office are the "chief deputy model" and the "multideputy cabinet model".[13]

In the "chief deputy model", the state attorney general delegates supervisory authority over all substantive divisions to a chief deputy attorney general, who acts as the *de facto* chief executive officer and presides over executive committee meetings.[13]

In the "multideputy cabinet model", there is no chief deputy. The office's substantive divisions are consolidated under a small number of first assistant or chief assistant attorneys general who together form the office's executive committee and function as a *de facto* cabinet to the state attorney general.[13]

Current attorneys general

The current party composition of the state attorneys general is:

- 22 Democrats
- 28 Republicans

The composition for the District of Columbia and the 5 populated territories is:

- 2 Democrats
- 1 Republican
- 2 Non-partisan
- 1 New Progressive

Rows of the attorney general table below are color coded indicating the political party of the office holder.

Officeholder	State	Party	Assumed office	Term expires	Law school	Term limits
Steve Marshall	Alabama	Republican	February 10, 2017	2027 (term limits)	University of Alabama, Tuscaloosa	2 consecutive terms
Treg Taylor	Alaska	Republican	January 30, 2021	Appointed	Brigham Young University	no term limits
Gwen Tauiliili-Langkilde	American Samoa	Nonpartisan	February 7, 2025	Appointed	University of Hawaii, Manoa	
Kris Mayes	Arizona	Democratic	January 2, 2023	2027	Arizona State University	2 consecutive terms
Tim Griffin	Arkansas	Republican	January 10, 2023	2027	Tulane University	2 terms maximum
Rob Bonta	California	Democratic	April 23, 2021	2027	Yale University	2 terms maximum
Phil Weiser	Colorado	Democratic	January 8, 2019	2027 (term limits)	New York University	2 consecutive terms
William Tong	Connecticut	Democratic	January 9, 2019	2027	University of Chicago	no term limits
Kathy Jennings	Delaware	Democratic	January 1, 2019	2027	Villanova University	no term limits
Brian Schwalb	District of Columbia	Democratic	January 2, 2023	2027	Harvard University	
James Uthmeier	Florida	Republican	February 17, 2025	2027	Georgetown University	2 consecutive terms
Chris Carr	Georgia	Republican	November 1, 2016	2027	University of Georgia	no term limits
Doug Moylan	Guam	Republican[b]	January 2, 2023	2027	Santa Clara University	
Anne Lopez	Hawaii	Democratic	December 5, 2022	Appointed	University of Hawaii, Manoa	no term limits
Raúl Labrador	Idaho	Republican	January 2, 2023	2027	University of Washington	no term limits
Kwame Raoul	Illinois	Democratic	January 14, 2019	2027	Illinois Institute of Technology	no term limits
Todd Rokita	Indiana	Republican	January 11, 2021	2029	Indiana University, Indianapolis	no term limits

Officeholder	State	Party	Assumed office	Term expires	Law school	Term limits
Brenna Bird	Iowa	Republican	January 3, 2023	2027	University of Chicago	no term limits
Kris Kobach	Kansas	Republican	January 9, 2023	2027	Yale University	no term limits
Russell Coleman	Kentucky	Republican	January 1, 2024	2028	University of Kentucky	2 consecutive terms
Liz Murrill	Louisiana	Republican	January 8, 2024	2028	Louisiana State University Pepperdine University (LLM)	no term limits
Aaron Frey	Maine	Democratic	January 2, 2019	2025 (Elected by the Legislature)	Roger Williams University	4 two year terms
Anthony Brown	Maryland	Democratic	January 3, 2023	2027	Harvard University	no term limits
Andrea Campbell	Massachusetts	Democratic	January 18, 2023	2027	University of California, Los Angeles	no term limits
Dana Nessel	Michigan	Democratic	January 1, 2019	2027 (term limits)	Wayne State University	2 terms max
Keith Ellison	Minnesota	Democratic (DFL)	January 7, 2019	2027	University of Minnesota, Twin Cities	no term limits
Lynn Fitch	Mississippi	Republican	January 9, 2020	2028	University of Mississippi, Oxford	no term limits
Andrew Bailey	Missouri	Republican	January 3, 2023	2029	University of Missouri, Columbia	no term limits
Austin Knudsen	Montana	Republican	January 4, 2021	2029	University of Montana	2 terms in 16-year period
Mike Hilgers	Nebraska	Republican	January 5, 2023	2027	University of Chicago	no term limits
Aaron Ford	Nevada	Democratic	January 7, 2019	2027 (term limits)	Ohio State University, Columbus	2 terms max
John Formella	New Hampshire	Republican	April 22, 2021	2025 (appointed)	George Washington University	no term limits
Matthew Platkin	New Jersey	Democratic	February 14, 2022	Appointed	Stanford University	no term limits

Officeholder	State	Party	Assumed office	Term expires	Law school	Term limits
Raúl Torrez	New Mexico	Democratic	January 1, 2023	2027	Stanford University	2 consecutive terms
Letitia James	New York	Democratic	January 1, 2019	2027	Howard University	no term limits
Jeff Jackson	North Carolina	Democratic	January 1, 2025	2029	University of North Carolina, Chapel Hill	no term limits
Drew Wrigley	North Dakota	Republican	February 9, 2022	2027	American University	no term limits
Edward Manibusan	Northern Mariana Islands	Democratic[a]	January 13, 2015	2027	Gonzaga University	
Dave Yost	Ohio	Republican	January 14, 2019	2027 (term limits)	Capital University	2 consecutive terms
Gentner Drummond	Oklahoma	Republican	January 9, 2023	2027	Georgetown University	2 terms max
Dan Rayfield	Oregon	Democratic	December 31, 2024	2029	Willamette University	no term limits
Dave Sunday	Pennsylvania	Republican	January 21, 2025	2029	Widener University (Delaware)	2 consecutive terms
Lourdes Gómez	Puerto Rico[14]	New Progressive	May 27, 2025	Appointed	Pontifical Catholic University of Puerto Rico	
Peter Neronha	Rhode Island	Democratic	January 1, 2019	2027 (term limits)	Boston College	2 consecutive terms
Alan Wilson	South Carolina	Republican	January 12, 2011	2027	University of South Carolina, Columbia	no term limits
Marty Jackley	South Dakota	Republican	January 3, 2023	2027	University of South Dakota	2 consecutive terms
Jonathan Skrmetti	Tennessee	Republican	September 1, 2022	2030 (Elected by State Supreme Court)	Harvard University	no term limits
Ken Paxton	Texas	Republican	January 5, 2015 Suspended: May 27, 2023 – September 16, 2023	2027	University of Notre Dame	no term limits
Gordon Rhea	U.S. Virgin Islands	Nonpartisan	April 29, 2024	Appointed	Stanford University	

Officeholder	State	Party	Assumed office	Term expires	Law school	Term limits
Derek Brown	Utah	Republican	January 6, 2025	2029	Pepperdine University	no term limits
Charity Clark	Vermont	Democratic	January 5, 2023	2027	Boston College	no term limits
Jason Miyares	Virginia	Republican	January 15, 2022	2026	College of William and Mary	no term limits
Nick Brown	Washington	Democratic	January 15, 2025	2029	Harvard University	no term limits
JB McCuskey	West Virginia	Republican	January 13, 2025	2029	West Virginia University	no term limits
Josh Kaul	Wisconsin	Democratic	January 7, 2019	2027	Stanford University	no term limits
Keith Kautz	Wyoming	Republican	July 7, 2025	Appointed	University of Wyoming	no term limits

See also

- State constitutional officer (United States)
- National Association of Attorneys General
- List of U.S. statewide elected officials

Notes

a. Attorney generals in the Northern Mariana Islands are elected non-partisan; however, Edward Manibusan affiliates with the Democratic Party
b. Attorney generals in Guam are elected non-partisan; however, Doug Moylan affiliates with the Republican Party

References

1. Isaeff, Bill; Kneedler, H. Lane; Mountain Jr., James E.; Rivlin, Catherine A. (1990). "Chapter 1: Origin and Development of the Office". In Ross, Lynne M. (ed.). *State Attorneys General: Powers and Responsibilities*. Washington, D.C.: BNA Books. pp. 3–14. ISBN 0871796368. (At p. 6.)

2. Isaeff, Bill; Kneedler, H. Lane; Mountain Jr., James E.; Rivlin, Catherine A. (1990). "Chapter 1: Origin and Development of the Office". In Ross, Lynne M. (ed.). *State Attorneys General: Powers and Responsibilities*. Washington, D.C.: BNA Books. pp. 3–14. ISBN 0871796368. (At p. 8.)
3. Isaeff, Bill; Kneedler, H. Lane; Mountain Jr., James E.; Rivlin, Catherine A. (1990). "Chapter 1: Origin and Development of the Office". In Ross, Lynne M. (ed.). *State Attorneys General: Powers and Responsibilities*. Washington, D.C.: BNA Books. pp. 3–14. ISBN 0871796368. (At p. 9.)
4. Moretto, Mario (January 23, 2015). "LePage sheds light on plan to strip Legislature of power to elect attorney general, treasurer" (http://bangordailynews.com/2015/01/23/politics/lepage-sheds-light-on-plan-to-strip-legislature-of-power-to-appoint-attorney-general-treasurer/). Bangor Publishing Company. Bangor Daily News. Retrieved January 16, 2016.
5. "Elections for Attorney General to Take Place in 30 States" (https://web.archive.org/web/20200808040010/https://www.naag.org/publications/naagazette/volume-4-number-1/elections-for-attorneys-general-to-take-place-in-30-states.php). *National Association of Attorneys General*. National Association of Attorneys General. Archived from the original (http://www.naag.org/publications/naagazette/volume-4-number-1/elections-for-attorneys-general-to-take-place-in-30-states.php) on August 8, 2020. Retrieved January 16, 2016.
6. "2014 State and Territorial Attorneys General Election Results" (https://web.archive.org/web/20200808040010/https://www.naag.org/publications/naagazette/volume-4-number-1/elections-for-attorneys-general-to-take-place-in-30-states.php). *National Association of Attorneys General*. Archived from the original (http://www.naag.org/publications/naagazette/volume-4-number-1/elections-for-attorneys-general-to-take-place-in-30-states.php) on August 8, 2020. Retrieved January 16, 2016.
7. "AG Spotlight: New Attorneys General" (https://web.archive.org/web/20201025054753/http://www.naag.org/publications/naagazette/volume-8-number-1/ag-spotlight-new-attorneys-general.php). *National Association of Attorneys General*. Archived from the original (http://www.naag.org/publications/naagazette/volume-8-number-1/ag-spotlight-new-attorneys-general.php) on October 25, 2020. Retrieved January 16, 2016.
8. "Attorneys General with term limits" (https://ballotpedia.org/Attorneys_General_with_term_limits). Ballotpedia. Retrieved August 29, 2019.
9. Isaeff, Bill; Kneedler, H. Lane; Mountain Jr., James E.; Rivlin, Catherine A. (1990). "Chapter 1: Origin and Development of the Office". In Ross, Lynne M. (ed.). *State Attorneys General: Powers and Responsibilities*. Washington, D.C.: BNA Books. pp. 3–14. ISBN 0871796368. (At p. 12.)
10. Isaeff, Bill; Kneedler, H. Lane; Mountain Jr., James E.; Rivlin, Catherine A. (1990). "Chapter 1: Origin and Development of the Office". In Ross, Lynne M. (ed.). *State Attorneys General: Powers and Responsibilities*. Washington, D.C.: BNA Books. pp. 3–14. ISBN 0871796368. (At p. 13.)
11. Isaeff, Bill; Kneedler, H. Lane; Mountain Jr., James E.; Rivlin, Catherine A. (1990). "Chapter 1: Origin and Development of the Office". In Ross, Lynne M. (ed.). *State Attorneys General: Powers and Responsibilities*. Washington, D.C.: BNA Books. pp. 3–14. ISBN 0871796368. (At p. 14.)
12. Phillips, Amber (May 15, 2016). "Is it legal for North Carolina's attorney general to not defend the state's bathroom law?" (https://www.washingtonpost.com/news/the-fix/wp/2016/05/15/is-it-legal-for-north-carolinas-attorney-general-to-not-defend-the-states-bathroom-law-probably/?noredirect=on). *The Washington Post*. Retrieved November 10, 2018.

13. Gilles, Timothy; Ross, Lynne M. (1990). "Appendix C: Office of Attorney General Organizational Structures". In Ross, Lynne M. (ed.). *State Attorneys General: Powers and Responsibilities*. Washington, D.C.: BNA Books. pp. 348–351. ISBN 0871796368. (At p. 348.)
14. The title of the head of Puerto Rico's Justice Department is the Secretary of Justice, not Attorney General.

External links

- Listing of official State Attorney General websites (http://www.naag.org/attorneys_general.php)

Retrieved from "https://en.wikipedia.org/w/index.php?title=State_attorney_general&oldid=1304877542"